

SENATE BILL 1746

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 17,
Chapter 5 and Title 36, relative to marriage.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 36-3-113, is amended by adding the following new subsection:

(e) Private citizens and organizations are not bound by the Fourteenth Amendment or by the Supreme Court's purported interpretation of the Fourteenth Amendment in *Obergefell v. Hodges*, 576 U.S. 644 (2015), and no private citizen or organization in this state is required to recognize a marriage or a purported marriage between individuals of the same sex, notwithstanding any other law.

SECTION 2. Tennessee Code Annotated, Section 17-5-301, is amended by adding the following new subsection:

(k) Notwithstanding any other law, the board shall not discipline, sanction, or threaten to discipline or sanction any person for declining to celebrate or officiate at a marriage or commitment ceremony that falls outside the definition of marriage provided in this code.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to actions occurring on or after that date.